

PERFORMANCE WORK STATEMENT MUTLIMODAL AI INVESTIGATIVE PLATFORM SCANWRITER AI OR EQUIVALENT

C.1 Introduction/Overview

In support of its law enforcement investigative mission the Internal Revenue Service (IRS) Criminal Investigation (CI) Division has a need to purchase ScanWriter AI and support or equivalent meeting the identified salient characteristics. This requirement is for an investigative data automation, analysis, and evidentiary traceability platform, to support IRS Criminal Investigation (CI) operations involving high-volume financial records, large multimedia evidence, multilingual transcription and translation, and court-defensible analysis conducted in on-premises and air-gapped investigative environments.

The platform shall support integration with CI's existing hyper-converged infrastructure (HCI), including its composable HCI architecture and GPU-accelerated AI/ML compute services. Integration with the Government's AI acceleration framework shall be achieved during the base period of performance and may be phased in at Government direction, rather than required as a Day-One condition.

C.2 Objective

The objective for this requirement is for an investigative data automation and analysis platform capable of processing large-scale financial records and multimedia evidence while maintaining deterministic evidentiary traceability, court-defensible analytics, and operational independence in on-premises and air-gapped environments.

C.3 Scope

The required solution shall:

- Operate fully on-premises and in disconnected environments with no reliance on contractor-hosted services.
- Convert unstructured financial documents and large multimedia evidence (>4GB) into structured, auditable datasets.
- Provide multilingual transcription and translation while preserving timestamps, metadata, and evidentiary integrity.
- Maintain deterministic, immutable linkage between every derived data element and its originating source artifact.
- Enable one-click validation from analytic outputs back to original evidence without reprocessing.
- Support human-in-the-loop decision support, explainability, and override for investigative triage functions.
- Avoid proprietary ontologies, data lock-in, or contractor-dependent sustainment models.
- Meet or exceed all salient characteristics identified in C.2.1.

This requirement is for court-defensible automation, not general analytics. The contractor shall provide a solution that natively preserve source-to-insight traceability, explainability, and government control.

C.2.1 Salient Characteristics

The salient characteristics set forth below define the IRS CI's minimum functional, performance, security, evidentiary, multilingual, and enterprise scalability requirements for the investigative data automation and analysis platform described in the Scope. The contractor shall provide a solution that provides:

- Court-defensible analytics and evidentiary traceability
- Compliance with chain-of-custody and oversight requirements
- Enterprise-scale multilingual investigative capability
- Reduced contractor lock-in and long-term sustainment risk
- Operational readiness for high-volume, complex financial investigations
- AI-enabled decision support with explainability and governance controls

Please see the below salient characteristics for the “or equal portion of this order”

1. Deployment & Infrastructure Alignment

- Operate fully within CI-controlled, on-premises, air-gapped, or disconnected investigative environments without mandatory reliance on contractor-hosted SaaS platforms for investigative datasets.
- Maintain functional parity across connected, disconnected, and restricted deployment environments.
- Be operable, configurable, and extensible by government personnel or government-designated integrators without permanent contractor-embedded staff.
- Support deployment within CI-2 hyper-converged and composable GPU-enabled infrastructure without architectural redesign. Integration with the government's composable Hyper-Converged Infrastructure (HCI) Artificial Intelligence (AI) acceleration framework is a priority capability and shall be achieved during the base period of performance. Full operational activation of Graphics Processing Unit (GPU)-accelerated processing is not required as a day-one condition and may be phased at government direction to align with infrastructure readiness and governance sequencing.¹
- Scale via government-approved compute resources without external data movement or contractor-managed operational control.

¹This requirement reflects the government's intent to complete AI acceleration integration during the base period while preserving flexibility in activation sequencing and avoiding unnecessary barriers to competition.

2. Enterprise Throughput & Performance Capacity

- Demonstrate sustained enterprise-scale processing capacity consistent with documented CI investigative workloads².
- Support high-volume intake and concurrent investigative use sufficient to prevent operational backlog.
- Maintain operational reliability under peak workload conditions.

- Support concurrent investigative users consistent with enterprise-wide deployment.
- Support scalable ingestion and classification of large-volume document submissions reflective of documented annual intake levels.

²Performance thresholds reflect minimum sustained investigative workload necessary to avoid backlog and operational delay.

3. Data Ownership, Portability & Contractor Independence

- Government retains full ownership of all ingested data, derived datasets, analytic outputs, custom models, prompts, configurations, and structured ontologies.
- All outputs shall be exportable in non-proprietary formats (e.g., CSV, Excel, PDF) without loss of evidentiary context.
- Internal ontologies or structured models shall not impair government retention, migration, or independent evidentiary use.
- Architecture shall avoid data egress barriers, proprietary lock-in constructs, or licensing restrictions that impede long-term case retention or transition.

4. Multimodal AI Architecture (Integrated, Human-in-the-Loop)

- Ingest and process structured, semi-structured, and unstructured data including documents, financial records, tabular datasets, images, handwriting, audio, and multimedia artifacts.
- Perform OCR, handwriting recognition, structured entity extraction, transcription, and translation within government-controlled environments.
- Deploy configurable AI/ML and Large Language Model (LLM) functionality locally for contextual analysis, classification, and investigative support without transmitting investigative data to external contractor-hosted model endpoints.
- Support automated classification and configurable workflow routing aligned to investigative or compliance treatment streams.
- Provide an interactive human-in-the-loop validation interface with confidence scoring, correction and override capability, structured feedback ingestion, and audit logging of automated and human actions.
- Preserve full transparency and traceability of AI-assisted outputs.

5. Financial Forensics Core Capabilities

- Provide purpose-built processing of bank statements, checks, deposit slips, remittance documents, credit card records, and related financial artifacts.
- Support regularly updated financial institution format libraries and onboarding of new formats within operationally necessary timeframes to meet time-sensitive warrant or subpoena response requirements.
- Provide automated transaction categorization, counterparty classification, reconciliation, anomaly detection, and normalization.
- Export structured outputs suitable for evidentiary authentication and expert analysis under Federal Rules of Evidence 901 and 702.

6. Large-File & Multilingual Media Processing

- Support processing of large investigative media files commonly encountered in seized evidence without manual segmentation that would compromise evidentiary continuity.
- Preserve original timestamps, metadata, and source continuity throughout transcription, translation, and analysis.
- Support parallel processing of large files without usage throttling that materially restricts investigative workflows.
- Provide investigative-grade transcription and translation within Government-controlled infrastructure for languages encountered in documented CI investigations, including major European, Asian, and other critical languages.
- Support transcription coverage for documented investigative encounters involving major Chinese dialect variants (e.g., Cantonese, Shanghainese, Jin), with preservation of bidirectional linkage between original and translated content.

7. Evidentiary Traceability, Provenance & Legal Defensibility

- Establish deterministic linkage between extracted or derived data elements and originating source artifacts.
- Associate each data element with source identifier, page number or timestamp, extraction method, and version.
- Provide immutable source-to-data associations with version-controlled corrections that preserve historical lineage.
- Enable direct navigation from structured outputs to corresponding source artifacts.
- Generate machine-readable provenance logs exportable for discovery, expert testimony, oversight, and audit review.
- Operate identically in offline and air-gapped environments.

8. Governance, Explainability & Performance Monitoring

- Support automated triage and investigative decision-support workflows.
- Ensure automated outputs are explainable and attributable to identifiable source artifacts and extracted data elements.
- Require mandatory human-in-the-loop review and override controls for investigative decision-support outputs.
- Support monitoring for performance drift, bias, degradation, and periodic validation under documented governance and change-management controls.
- Maintain logged accountability for system adjustments, retraining events, and user overrides.

9. Licensing, Enterprise Sustainability & Operational Continuity

- Provide enterprise licensing sufficient to support No more than 2,500 CI personnel and supporting investigative staff.
- Support uninterrupted investigative operations during surge conditions without usage throttling that materially restricts processing of financial records, subpoena returns, multimedia evidence, or AI-assisted workflows.
- Avoid per-transaction, per-file, per-minute, or artificial usage constructs inconsistent with sustained enterprise investigative operations.

- Support scaling via compute expansion without triggering duplicative licensing for core functionality.
- Provide transparent pricing aligned to enterprise deployment and investigative continuity.

Brand Name: ScanWriterAI

Manufacturer	CLIN	Model/Description	Qty
ScanWriter or Equivalent	0001	ScanWriterAI® Premier LS Maintenance Unlimited Edition for IRS-CI (unlimited user license) Includes: - Unlimited Common Readers; - Private Library; - Unlimited Common Power BI Models; - Priority support and reader requests; - Customized webinar training; - Unlimited Software upgrades.	1
	0002	Monthly Webinar Training Includes: - Up to 50 attendees per webinar class	12
	0003	ScanWriter® Handwriting Virtual Server License	3
	0004	ScanWriter® Handwriting Virtual Server Annual Maintenance	5
	0005	ScanWriter® Concurrent License & Centralized Library Server Maintenance	1
	0006	ScanWriterAI® Virtual Server Unlimited Edition (Unlimited Server license)	1
	0007	Continuous AI Enhancement and Performance Tuning Initial License Development Included: - ScanWriterAI® Premier LS FRAG Client License Edition for Non-IRS-CI Users (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server License (Qty = 1) Continuous AI Enhancement and Performance Tuning Includes: - ScanWriterAI® Premier LS FRAG Annual Maintenance (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server Annual Maintenance (Qty = 1) - ScanWriterAI® Premier LS FRAG AI Virtual Server Annual Maintenance (Qty = 1) - Nutatnix NAI Development, Integration, and Support	1
	0008	ScanWriter Professional Services – Investigative Case-based code refinement. Provide professional services to agency to develop and refine AI/ML templates, models, and natural language processing, for unredacted internal datasets	1
Option Year 1			
	1001	ScanWriterAI® Premier LS Maintenance Unlimited Edition for IRS-CI (unlimited user license) Includes: - Unlimited Common Readers; - Private Library; - Unlimited Common Power BI Models; - Priority support and reader requests; - Customized webinar training; - Unlimited Software upgrades.	1

	1002	Monthly Webinar Training Includes: - Up to 50 attendees per webinar class	12
	1004	ScanWriter® Handwriting Virtual Server Annual Maintenance	5
	1006	ScanWriter® Concurrent License & Centralized Library Server Maintenance	1
	1007	ScanWriterAI® Virtual Server Unlimited Edition (Unlimited Server license)	1
	1008	Continuous AI Enhancement and Performance Tuning Initial License Development Included: - ScanWriterAI® Premier LS FRAG Client License Edition for Non-IRS-CI Users (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server License (Qty = 1) Continuous AI Enhancement and Performance Tuning Includes: - ScanWriterAI® Premier LS FRAG Annual Maintenance (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server Annual Maintenance (Qty = 1) - ScanWriterAI® Premier LS FRAG AI Virtual Server Annual Maintenance (Qty = 1) - Nutatnix NAI Development, Integration, and Support	1
	1009	ScanWriter Professional Services – Investigative Case-based code refinement. Provide professional services to agency to develop and refine AI/ML templates, models, and natural language processing, for unredacted internal datasets	1
	1011	ScanWriter® Handwriting Virtual Server License (optional)	1
	1012	ScanWriter® Handwriting Virtual Server Annual Maintenance (optional)	1
Option Year 2			
	2001	ScanWriterAI® Premier LS Maintenance Unlimited Edition for IRS-CI (unlimited user license) Includes: - Unlimited Common Readers; - Private Library; - Unlimited Common Power BI Models; - Priority support and reader requests; - Customized webinar training; - Unlimited Software upgrades.	1
	2002	Monthly Webinar Training Includes: - Up to 50 attendees per webinar class	12
	2004	ScanWriter® Handwriting Virtual Server Annual Maintenance	5
	2006	ScanWriter® Concurrent License & Centralized Library Server Maintenance	1
	2007	ScanWriterAI® Virtual Server Unlimited Edition (Unlimited Server license)	1
	2008	Continuous AI Enhancement and Performance Tuning Initial License Development Included: - ScanWriterAI® Premier LS FRAG Client License Edition for Non-IRS-CI Users (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server License (Qty = 1) Continuous AI Enhancement and Performance Tuning Includes: - ScanWriterAI® Premier LS FRAG Annual Maintenance (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server Annual Maintenance (Qty = 1) - ScanWriterAI® Premier LS FRAG AI Virtual Server Annual Maintenance (Qty = 1) - Nutatnix NAI Development, Integration, and Support	1

	2009	ScanWriter Professional Services – Investigative Case-based code refinement. Provide professional services to agency to develop and refine AI/ML templates, models, and natural language processing, for unredacted internal datasets	1
	2011	ScanWriter® Handwriting Virtual Server License (optional)	1
	2012	ScanWriter® Handwriting Virtual Server Annual Maintenance (optional NTE 2)	2
Option Year 3			
	3001	ScanWriterAI® Premier LS Maintenance Unlimited Edition for IRS-CI (unlimited user license) Includes: - Unlimited Common Readers; - Private Library; - Unlimited Common Power BI Models; - Priority support and reader requests; - Customized webinar training; - Unlimited Software upgrades.	1
	3002	Monthly Webinar Training Includes: - Up to 50 attendees per webinar class	12
	3004	ScanWriter® Handwriting Virtual Server Annual Maintenance	5
	3006	ScanWriter® Concurrent License & Centralized Library Server Maintenance	1
	3007	ScanWriterAI® Virtual Server Unlimited Edition (Unlimited Server license)	1
	3008	Continuous AI Enhancement and Performance Tuning Initial License Development Included: - ScanWriterAI® Premier LS FRAG Client License Edition for Non-IRS-CI Users (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server License (Qty = 1) Continuous AI Enhancement and Performance Tuning Includes: - ScanWriterAI® Premier LS FRAG Annual Maintenance (Qty = 10) - ScanWriterAI® Premier LS FRAG Data Virtual Server Annual Maintenance (Qty = 1) - ScanWriterAI® Premier LS FRAG AI Virtual Server Annual Maintenance (Qty = 1) - Nutatnix NAI Development, Integration, and Support	1
	3009	ScanWriter Professional Services – Investigative Case-based code refinement. Provide professional services to agency to develop and refine AI/ML templates, models, and natural language processing, for unredacted internal datasets	1
	3011	ScanWriter® Handwriting Virtual Server License (optional)	1
	3012	ScanWriter® Handwriting Virtual Server Annual Maintenance (optional - NTE 3)	3

C.4 Deliverables Table

Deliverables are considered mission-critical and directly tied to IRS Criminal Investigation's ability to process digital evidence in a court-defensible manner. Failure to meet any deliverable that impacts system availability, evidentiary traceability, or enterprise access may result in performance deficiencies and contractual remedies.

Multimodal AI Investigative Platform (ScanWriter AI or Equal)

#	Deliverable	Objective	Due	Review
1	24/7 Platform Availability – Investigative AI System (On-Prem / Air-Gapped)	Ensure continuous access to the investigative platform supporting financial records, multimedia evidence, and AI-assisted workflows with zero lapse in availability or data loss.	No later than five (5) business days after contract award	Contracting Officer's Representative (COR) or Technical Point of Contact (TPOC) review
2	Enterprise Licensing Activation (~3,000 Users)	Establish enterprise access aligned to CI workforce, eliminating license contention and ensuring uninterrupted investigative operations across all time zones.	No later than five (5) business days after contract award	COR or TPOC Review
3	Centralized Evidence Library & Data Access	Provide Government-controlled access to all ingested and processed investigative data, ensuring full data ownership, accessibility, and auditability.	No later than five (5) business days after initial setup	COR or TPOC Review
4	Multimodal Data Processing Capability (Operational Readiness)	Enable ingestion and processing of structured, unstructured, and multimedia data (documents, financial records, audio, images, handwriting) with traceable, structured outputs.	No later than ten (10) business days after contract award	COR or TPOC Review
5	Evidentiary Traceability & Provenance Logging	Provide deterministic linkage from all derived data elements back to source artifacts, including machine-readable provenance logs for audit, discovery, and expert testimony.	No later than ten (10) business days after contract award	COR or TPOC Review
6	Multilingual Transcription & Translation Capability	Provide investigative-grade transcription and translation (including dialect support) while preserving timestamps, metadata, and source linkage.	No later than ten (10) business days after contract award	COR or TPOC Review
7	Financial Forensics Processing Capability	Enable automated processing of financial artifacts (bank statements, checks, deposits, etc.) including classification, reconciliation, and structured outputs for evidentiary use.	No later than ten (10) business days after contract award	COR or TPOC Review

#	Deliverable	Objective	Due	Review
8	Human-in-the-Loop Validation Interface	Provide interface for analyst review, confidence scoring, correction, and override with full audit logging of user and system actions.	No later than ten (10) business days after contract award	COR or TPOC Review
9	AI/ML Model Deployment (On-Prem / Local Execution)	Deploy AI/ML and LLM capabilities fully within Government-controlled infrastructure with no external data transmission or reliance on contractor-hosted services.	No later than ten (10) business days after contract award	COR or TPOC Review
10	Initial System Configuration & Integration Support	Configure system within CI-2 environment, including integration with HCI infrastructure and preparation for GPU acceleration (phased activation).	No later than fifteen (15) business days after contract award	COR or TPOC Review
11	Training – Monthly Investigative User Training Sessions	Provide recurring training covering platform usage, AI validation, evidentiary workflows, and investigative best practices.	Monthly (12 per year)	COR or TPOC Review
12	Professional Services – AI Model & Workflow Refinement	Provide ongoing refinement of AI/ML models, NLP pipelines, and investigative workflows using CI datasets.	As requested; within five (5) business days of tasking	COR or TPOC Review
13	Continuous AI Enhancement & Performance Tuning	Maintain and improve system performance, model accuracy, and workflow efficiency aligned to evolving investigative requirements.	Continuous throughout period of performance	COR or TPOC Review
14	System Performance & Usage Reporting	Provide monthly reporting on system usage, performance metrics, throughput, and resource utilization to support operational oversight.	Monthly (no later than 30th of each month)	COR or TPOC Review
15	Concurrent Usage & Throughput Reporting	Provide reporting on concurrent usage levels, denied sessions (if any), and processing throughput to ensure no operational backlog or throttling.	Monthly	COR or TPOC Review
16	System Availability & Incident Reporting	Provide reporting on uptime, outages, incident response, and resolution timelines to ensure mission continuity.	Monthly	COR or TPOC Review

#	Deliverable	Objective	Due	Review
17	Software Updates & Enhancements Delivery	Provide all software updates, patches, and enhancements without disruption to operations or evidentiary integrity.	As released; coordinated with government	COR or TPOC Review
18	Scalable Processing Capability (Server / Compute Expansion Support)	Enable expansion of compute resources (including GPU acceleration) without requiring architectural redesign or additional licensing constraints.	As directed by Government	COR or TPOC Review
19	Data Export & Portability Capability	Ensure all outputs are exportable in non-proprietary formats (CSV, Excel, PDF) with full evidentiary context retained.	Available upon system activation	COR or TPOC Review
20	End-of-Period Data Retention & Transition Support	Ensure Government retains all data, models, and outputs with no contractor lock-in or data loss, including support for transition if required.	At contract end or as directed	COR or TPOC Review

C.5 Performance Requirements, Standards and Surveillance

The contractor service requirements are summarized into performance objectives that relate directly to mission essential investigative capabilities. The performance threshold describes the minimum acceptable levels of service required to support IRS Criminal Investigation operations involving digital evidence, financial records, and AI-assisted analysis. These thresholds are critical to mission success, evidentiary integrity, and operational continuity.

Performance Objective	Standard	Performance Threshold	Method of Surveillance
3.0 Platform Availability & Access	Contractor shall provide continuous access to the investigative platform in on-premises or air-gapped environments.	99.9% system availability; zero unplanned outages exceeding 1 hour; no loss of investigative data.	COR/TPOC Review

Performance Objective	Standard	Performance Threshold	Method of Surveillance
3.0 Enterprise Licensing & User Access	Contractor shall provide enterprise access supporting ~3,000 users without license contention.	100% user access availability; 0 denied sessions during normal and surge operations.	COR/TPOC Review
3.0 Data Access & Ownership	Contractor shall ensure Government-controlled access to all data and outputs.	100% data accessibility; no restrictions on export or retrieval; no contractor - controlled barriers.	COR/TPOC Review
3.0 Multimodal Data Processing Capability	Contractor shall provide processing of structured, unstructured, and multimedia evidence.	≥95% successful processing of submitted data types without failure or manual segmentation.	COR/TPOC Review
3.0 Evidentiary Traceability & Provenance	Contractor shall maintain deterministic linkage between outputs and source evidence.	100% traceability of derived data elements to source artifacts; zero loss of lineage.	COR/TPOC Review
3.0 Multilingual Processing	Contractor shall provide transcription and translation with metadata preservation.	≥95% target or government acceptable rate transcription/translation accuracy (investigative-grade); 100% metadata preservation.	COR/TPOC Review
3.0 Financial Forensics Processing	Contractor shall process financial artifacts and produce structured outputs.	≥95% extraction accuracy for financial records; outputs usable for evidentiary analysis.	COR/TPOC Review
3.0 Human-in-the-Loop Validation	Contractor shall provide analyst interface with	100% of automated outputs support user validation, correction, and audit logging.	COR/TPOC Review

Performance Objective	Standard	Performance Threshold	Method of Surveillance
	override and audit capability.		
3.0 AI/ML Local Deployment	Contractor shall ensure all AI/ML processing occurs within Government-controlled environments.	0 external data transmission; 100% local execution of models.	COR/TPOC Review
3.0 System Integration & Configuration	Contractor shall complete system setup and integration within CI-2 environment.	Initial operational capability within 15 business days of award.	COR/TPOC Review
3.0 Training Delivery	Contractor shall provide recurring user training.	100% delivery of scheduled training sessions; ≥90% user satisfaction. Webinar schedule made available at least 60 days before held.	COR/TPOC Review
3.0 Professional Services Support	Contractor shall provide model and workflow refinement support.	Response within 5 business days; delivery within agreed timelines.	COR/TPOC Review
3.0 Continuous AI Enhancement	Contractor shall maintain and improve system performance and models.	Quarterly measurable performance improvements or documented optimization activities.	COR/TPOC Review
3.0 Performance & Usage Reporting	Contractor shall provide system usage and performance metrics.	Monthly reports delivered on time (≤30th of month); ≥95% data accuracy.	COR/TPOC Review

Performance Objective	Standard	Performance Threshold	Method of Surveillance
3.0 Concurrency & Throughput Reporting	Contractor shall report usage, throughput, and denied sessions.	Monthly reporting; 0 unresolved throughput bottlenecks.	COR/TPOC Review
3.0 System Availability Reporting	Contractor shall report uptime, incidents, and resolutions.	Monthly reporting; incident resolution within 24 hours for critical issues.	COR/TPOC Review
3.0 Software Updates & Enhancements	Contractor shall provide updates without operational disruption.	100% successful updates; no degradation of system performance or data integrity.	COR/TPOC Review
3.0 Scalability & Compute Expansion	Contractor shall support scaling without architectural redesign.	Scaling achieved within 90 business days of request; no service interruption.	COR/TPOC Review
3.0 Data Export & Portability	Contractor shall support export of all data in non-proprietary formats.	100% successful export of datasets with full evidentiary context.	COR/TPOC Review
3.0 Data Retention & Transition	Contractor shall ensure data retention and transition support.	100% data retained and transferable at contract end; zero data loss.	COR/TPOC Review

C.6 Delivery/Place of Performance

Contractor's Facilities

C.7 Period Of Performance

The anticipated period of performance will be

Base Year: 06/01/2026-05/31/2027
 OY1: 06/01/2027-05/31/2028

OY2: 06/01/2028-05/31/2029
OY3: 06/01/2029-05/31/2030

C.8 Government Furnished Property

GFP (to include material, equipment, and/or information) will be provided in the performance of this Task Order. The following GFP will be provided to the Contractor:

ITEMS

Contractor Identification Badge

Laptop Computer with Local Area Network Access

Microsoft: Word, Excel, PowerPoint, Project Access

C.9 Government-Furnished Information

GFI (to include manuals, notes, memos, instruction materials, and other information) will be provided in the performance of this Task Order. The following GFI will be provided to the Contractor upon Task Order award.

INFORMATION ITEMS

Manuals, directives, instructions, and other printed/electronic media required for the performance of duties including IRM and other official use only publications.

RIGHTS TO DATA AND DISCLOSURE

Due to the nature of the IRS mission, all data, work products and deliverables used in its mission is the property of the IRS.

Contractor shall not utilize or disclose any information pertaining to this Task Order without the prior written consent of IRS Contracting Officer (CO).

It is anticipated that during the course of performance, contractor personnel may be provided information related to grand jury proceedings. Pursuant to Federal Rules of Criminal Procedure (F.R.Crim.P) 6(e)(2), a matter occurring before a grand jury is confidential. Under the authority of F.R.Crim.P 6(e)(2)(B)(7) and 6(e)(3)(A)(ii), a person to whom disclosure of a grand jury proceeding is made shall not disclose information related to that proceeding. Further, under FRCP 6(e)(7), a knowing violation of Rule 6, or any guidelines jointly issued by the Attorney General and the Director of National Intelligence under Rule 6, may be punished as a contempt of court. This duty to safeguard grand jury information is in addition to the requirement to safeguard IRS SBU information.

C.10 Security Requirements

This contract is categorized as UNCLASSIFIED at the overall level of Tier 4.

The contractor is responsible for obtaining the approval of the CO or authorized representative prior to release of any information received or generated under the contract. The CO or authorized representative will direct the contractor to the appropriate office that has public release authority. Prime contractors shall serve as focal point for their subs' public release requests and refer them to the CO or authorized representative.

The contractor shall not safeguard (store, handle, or process) IRS information, unclassified or sensitive at their (or another contractor's) facility.

Personnel Clearance and Access Requirements:

The Contractor shall provide a suitable, qualified, trained, and favorably adjudicated staff with the skills necessary to perform all support functions referenced in this contract. Security/suitability requirements for personnel are found in Internal Revenue Manual (IRM) [10.23.2](#), Treasury Directive Policy (TD P) 15-71, and [5 CFR 731](#). All personnel working under this **contract must be U.S. citizens.** All contractors must be vetted and approved by Personnel Security to have a security clearance commensurate with the level of contract prior to beginning work on any classified portion of this contract; **unclassified work can commence if the contract employees have met suitability and basic investigative requirements (e.g., have a Tier 4).**

Any employee assigned to support the IRS shall comply with Personal Identity Verification (PIV) requirements as described in Homeland Security Presidential Directive 12 ([HSPD-12](#)), "Policy for a Common Identification Standard for Federal Employees and Contractors," and "[Federal Information Processing Standard 201-2](#), Personal Identity Verification Standards for Federal Employees and Contractors," dated August 2013, or replacement document.

Termination of Personnel:

IRS retains the right to require removal of Contractor personnel, regardless of current IRS work status (current, prospective, past contractor), whose actions, while assigned to this contract, clearly conflict with the interest of the Government. Lack of the ability to obtain or maintain the required investigation level is included in the reasons the IRS may remove a contractor employee. The reason for removal shall be documented in writing by the CO or authorized representative, with the COR notifying the contractor that the employee shall not continue to work on IRS contracts. Additionally, the contractor must notify the COR, IRS Program Manager of the contract and Personnel Security of all terminations or resignations within 24 hours of occurrence. If a removal, termination or resignation occurs, the contractor is responsible for

assigning qualified replacement personnel within 30 days and ensuring, during that period, that performance of the contract is not adversely affected. The contractor must also ensure that, prior to the end of the contract, all IRS information, systems and equipment is returned to the appropriate IRS personnel with attention devoted to the return of IRS material. Failure to return government materials may result in remedial actions against the contractor.

Reporting Requirements:

The contractor shall report to the COR and contract's IRS Program Manager any adverse information coming to its attention concerning employees working under this contract, to include loss or suspension of suitability/investigation status. Reports based on rumor or innuendo should not be made. The subsequent termination of an employee does not obviate the requirement of the contractor to submit this report. The report shall include each employee's legal name, last four of the social security number, date of birth, and the adverse information.

At the completion of the contract vehicle, the contractor shall send a written notice from the authorized principle of the company attesting that all file records pertaining to this contract in possession of the contractor were destroyed in accordance with National Institute of Standards and Technology (NIST) Special Publication (SP) [800-12](#) and NIST SP [800-88](#), or replacement.

General Security:

The IRS Criminal Investigation requires the contractor to provide a negative 10-panel drug test result with onboarding documentation submission.

Contractors should not serve as an escort for their subs or for any other contractor unless they have staff-like access; if staff-like access is lacking, escorts should be IRS Federal employees. Contractor personnel shall visibly wear IRS issued identification badges above the waist when working in Government facilities. Contractors and their subs must perform all initial, annual, contemporaneous, specialized and termination required by IRS guidance as appropriate for their position. Contractor personnel will have access to IRS facilities, information and equipment limited to that which is needed to perform contract scope.

While the contractor's personnel are at the government facility, the contractor is responsible for compliance with all laws, rules, and regulations governing conduct with respect to security – not only as they relate to its employees and agents, but also to other personnel who are government employees or agents of the government and to

property at the site regardless of ownership. While on government premises and in possession of government property, the contractor is responsible for such property and any damages or compromise thereto by contractor's employees. The contractor and its employees shall exercise the utmost discretion regarding all matters relating to their duties and functions, and in the safeguarding of information from inadvertent release.

Guidance Requirements:

Sensitive but Unclassified (SBU) must be protected in accordance with IRM 10.5.8, TD P 15-71, [EO 13556](#) and [32 CFR 2002](#). Documents marked as For Official Use Only (FOUO) must be protected in accordance with the providing Agency's directives. Data contained within all IRS computer systems are governed by IRS' and Federal regulations. If a security requirement is not covered by the language in this contract and its attachments (DD F 254), the applicable IRMs, TD P 15-71 and the aforementioned documents must be consulted. Contractor personnel assigned to this project will be held accountable for adherence to these regulations. The IRS is currently implementing the Controlled Unclassified Information (CUI) Program and will provide information regarding the handling, protection and destruction of CUI as implementation continues to proceed; IRS Control Number PGLD-10-0124-0001, Interim Guidance (IG) Regarding the Receipt and Handling of Controlled Unclassified Information (CUI). Prior to CUI Policy Implementation, applies until IRS has fully implemented.

Work on this contract may require personnel to have access to private information covered by the [Privacy Act of 1974](#), Title 5 of the U.S. Code (USC), Section 552a. All contractor personnel shall adhere to the requirements of the Privacy Act as well as any applicable IRS or Federal regulation regarding private information or other types of non-public information.

The contractor agrees and understands that the latest version (if superseded) of the USC, CFRs, EOs, IRMs and policies and all other government issued documents that are referenced above will be followed. If the contractor fails to follow security requirements, the result may be remedy in accordance with [FAR Subpart 49.4](#) - Termination for Default.